# MUTUAL NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement ("**Agreement**") is entered into by and between Eleven Labs Inc. ("**ElevenLabs**") and the party identified as "Signatory" on the signature page ("**Signatory**"), effective as of the date of last signature ("**Effective Date**"), to protect the confidentiality of information disclosed for the sole purpose of evaluating or pursuing a business relationship between the parties ("**Permitted Use**").

Each undersigned party ("**Recipient**") understands that the other party ("**Discloser**") has disclosed, may disclose, or may provide access to information relating to the Discloser's business (including the business of any of the Discloser's affiliates), which to the extent previously, presently or subsequently disclosed to the Recipient is hereinafter referred to as "**Proprietary Information**" of the Discloser. Proprietary Information disclosed by the Discloser may include, without limitation: (a) patents and patent applications; (b) trade secrets; (c) proprietary and confidential information, such as software programs, sketches, drawings, algorithms, know-how, formulas, processes, ideas, techniques, inventions (whether patentable or not), schematics, models, apparatuses, equipment, works of authorship, and other technical, business, financial, investor, legal, customer and product development plans, forecasts, relationships, strategies and information, information from or pertaining to the Discloser's or its affiliates' customers and suppliers; and (d) all other information that the Recipient knew, or reasonably should have known, was the Proprietary Information of the Discloser or its affiliates. In consideration of the parties' discussions and any access of the Recipient to Proprietary Information of the Discloser, the parties hereby agree as follows:

1. The Recipient agrees: (a) to hold the Discloser's Proprietary Information in confidence at all times and notwithstanding any termination or expiration of this Agreement; (b) not to divulge any such Proprietary Information or any information derived therefrom to any third person; (c) to take reasonable precautions to protect such Proprietary Information (including, without limitation, all precautions the Recipient employs with respect to its own confidential materials); (d) not to make any use whatsoever at any time of such Proprietary Information other than the Permitted Use; (e) not to copy or reverse engineer any such Proprietary Information; (f) not to export or reexport (within the meaning of any applicable export control laws or regulations, U.S. or otherwise ("**Export Laws**") any such Proprietary Information or product thereof in violation of any Export Laws; and (g) to limit access to the Proprietary Information to only those of its and its affiliates' officers, directors, employees, consultants or agents having a need to know and who have signed confidentiality agreements containing, or are otherwise bound by, confidentiality obligations at least as restrictive as those in this Agreement (collectively, "**Representatives**"). The Recipient is responsible and liable for any actions taken by its Representatives that would be deemed a breach of this Agreement if the Recipient had taken such actions.

2. Without granting any right or license, the Discloser agrees that the foregoing shall not apply with respect to any information that the Recipient can demonstrate: (a) is or becomes (through no improper action or inaction by the Recipient or any affiliate, agent, consultant or employee of the Recipient) generally available to the public; (b) was in the Recipient's possession or known by it without restriction prior to receipt from the Discloser; (c) was rightfully disclosed to the Recipient by a third party without restriction; or (d) was independently developed without use of or reference to any Proprietary Information of the Discloser.

3. The Recipient may, without violating the obligations of this Agreement, disclose Proprietary Information to the extent required by a legally binding order by a court or other governmental body having jurisdiction, provided that the Recipient (to the extent permitted by applicable law): (a) provides the Discloser with reasonable prior written notice of such order; and (b) uses reasonable efforts to limit disclosure and to obtain, or to assist the Discloser in obtaining, confidential treatment or a protective order preventing or limiting the disclosure, while allowing the Discloser to participate in the proceeding. To the extent that such disclosure is nevertheless compelled, the Recipient will disclose only that portion of the Discloser's Proprietary Information required by such order. Proprietary Information that is disclosed in response to such an order shall retain its status as "Proprietary Information" under this Agreement.

4. The Recipient will promptly notify the Discloser in the event of any confirmed loss or unauthorized disclosure of any Proprietary Information.

5. Upon written request by the Discloser at any time, the Recipient will promptly destroy (and, upon request, provide written certification confirming such destruction) or turn over to the Discloser all Proprietary Information of the Discloser and all documents (such as notes and memoranda) or media containing any such Proprietary Information and any and all copies or extracts thereof, provided that the Recipient may retain (i) copies of the Discloser's Proprietary Information contained in an archived computer backup system stored as a result of automated backup procedures, and (ii) archival copies of the Discloser's Proprietary Information for the sole purpose of complying with applicable legal or regulatory requirements. Any copies so retained shall remain subject to all confidentiality and non-use obligations herein.

6. Proprietary Information is and will remain the sole property of the Discloser. The Recipient recognizes and agrees that nothing contained in this Agreement will be construed as granting any property rights, by license or

otherwise, to any Proprietary Information of the Discloser, or to any invention or any patent, copyright, trademark, or other intellectual property right that has issued or that may issue, based on such Proprietary Information, except as expressly set forth herein.

7. The Recipient understands that nothing herein: (a) requires the disclosure of any Proprietary Information of the Discloser; (b) requires the Discloser to proceed with any transaction or relationship; or (c) shall result in any obligation on the part of either party to enter into any further agreement with the other. Nothing in this Agreement creates or shall be deemed to create any employment, joint venture, or agency between the parties.
8. Any reproduction of any Proprietary Information will remain the property of the Discloser and will contain any and all confidential or proprietary notices or legends that appear on the original, unless otherwise authorized in advance writing by the Discloser.
9. THE DISCLOSER IS PROVIDING PROPRIETARY INFORMATION ON AN “AS IS” BASIS FOR USE BY THE RECIPIENT AT ITS OWN RISK. THE DISCLOSER DISCLAIMS ALL WARRANTIES, WHETHER EXPRESS, IMPLIED, STATUTORY OR OTHERWISE WITH RESPECT TO THE PROPRIETARY INFORMATION.
10. Neither party shall use the other party as a reference for new business, or issue or release any announcement, statement, press release or other publicity or marketing materials relating to this Agreement or otherwise use the other party’s trademarks, service marks, trade names, logos, domain names or other indicia of source, affiliation or sponsorship, in each case, without obtaining the prior express written consent of the other party.
11. This Agreement will terminate 3 years after the Effective Date (the “**Term**”). Furthermore, this Agreement may be terminated by either party at any time upon 30 days’ prior written notice to the other party. The Recipient’s obligations to protect Proprietary Information received under this Agreement shall continue for 5 years after termination or expiration of this Agreement. The Recipient’s obligations under this Agreement will be binding upon its heirs, successors, and permitted assigns. Notwithstanding anything to the contrary herein, the Recipient’s obligations with respect to all Proprietary Information that is a trade secret of the Discloser will survive any termination or expiration of this Agreement for so long as such information remains a trade secret.
12. No waiver or modification of this Agreement will be binding unless made in writing and signed by duly authorized representatives of each party (for this purpose, electronic documentation and signatures are sufficient) and no failure or delay in enforcing any right will be deemed a waiver.
13. The Recipient acknowledges and agrees that due to the unique nature of the Discloser’s Proprietary Information, there can be no adequate remedy at law for any breach of its obligations hereunder, which breach may result in irreparable harm to the Discloser, and therefore, that upon any such breach or any threat thereof, the Discloser shall be entitled to seek appropriate equitable relief, without the requirement of posting a bond or proving damages, in addition to whatever remedies it might have at law.
14. In the event that any of the provisions of this Agreement shall be held by a court or other tribunal of competent jurisdiction to be illegal, invalid or unenforceable, such provisions shall be limited or eliminated to the minimum extent necessary so that this Agreement shall otherwise remain in full force and effect. All notices or reports permitted or required under this Agreement shall be in writing and shall be delivered by personal delivery, electronic mail or by certified or registered mail, return receipt requested, and will be deemed given upon personal delivery, 5 days after deposit in the mail, or upon acknowledgment of receipt of electronic transmission (such as email). Notices will be sent to the addresses set forth at the end of this Agreement or such other address as either party may specify in writing. The prevailing party in any action to enforce this Agreement shall be entitled to costs and attorneys’ fees. Neither party may assign this Agreement without the prior written consent of the other party, provided, however, either party may assign this Agreement without the other party’s consent in connection with a merger, acquisition, corporate reorganization, or sale of all or substantially all of its assets. This Agreement supersedes all prior and contemporaneous discussions and writings and constitutes the entire agreement between the parties with respect to the subject matter hereof.
15. The governing law that applies to any dispute or lawsuit arising out of or in connection with this Agreement, and the courts that have jurisdiction over such dispute or lawsuit, will depend on the Signatory’s domicile, as set out below. The governing law shall apply without regard to its conflict of laws principles.

| **Signatory Domicile** | **Governing Law** | **Courts with Exclusive Jurisdiction** |
|---|---|---|
| Rest of World | New York | New York, NY |
| Europe | Ireland | Dublin, Ireland |
| United Kingdom | England & Wales | London, England |

**IN WITNESS WHEREOF**, the parties hereto have executed this Agreement by their duly authorized representatives as of the Effective Date.

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| **Eleven Labs Inc.** | | **Signatory:** ________________________ |
| By: Mateusz Staniszewski | | By: ______________________________ |
| Name: Mateusz Staniszewski | | Name: ___________________________ |
| Title: CEO | | Title: ____________________________ |
| Address for Notices:<br>169 Madison Ave., #2484<br>New York, NY 10016 | | Date: ____________________________ |
| | | Address for Notices:<br>____________________________<br>____________________________ |